

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$10,750.83.

Plaintiff to file Order on Motion, as well as submit Judgment, and to serve Defendant with copy of filed Order.

8. 9:00 AM CASE NUMBER: L25-03662

CASE NAME: JPMORGAN CHASE BANK, N.A. VS. DESMOND BURNS

*HEARING ON MOTION IN RE: MOTION TO SET ASIDE DISMISSAL AND ENTER JUDGMENT UNDER STIPULATION

FILED BY: JPMORGAN CHASE BANK, N.A.

TENTATIVE RULING:

Plaintiff filed a Motion to set aside dismissal and enter judgment per agreement.

Plaintiff provided notice by mail service, but there is no evidence to corroborate that Defendant resides or receives mail at the particular address. Plaintiff never filed an Answer, and there is no proof of service of summons.

This court does not find that Plaintiff properly notified Defendant of this Motion.

Disposition

This Motion will be continued to 10/6/26, 9am.

Plaintiff to properly notify Defendant with copy of Motion and of hearing date.

9. 9:00 AM CASE NUMBER: L25-09717

CASE NAME: PORTFOLIO RECOVERY ASSOCIATES, LLC VS. GENEVIEVE GARCIA

*HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL

FILED BY: GARCIA, GENEVIEVE E

TENTATIVE RULING:

Counsel for Defendant filed a Motion to be relieved as counsel. Counsel provided notice to his client.

The court reviewed the Declaration filed by counsel.

Disposition

Counsel's Motion is granted.

Counsel to file Order, and to serve copy of Order, as well notice of the next hearing, on the Defendant.

10. 9:00 AM CASE NUMBER: L25-12704

CASE NAME: CAPITAL ONE, N.A., SUCCESSOR BY MERGER TO DISCOVER BANK VS. ROLANDO SANCHEZ

*HEARING ON MOTION IN RE: NTC AND MTN TO QUASH SERVICE OF SUMMONS AND SET ASIDE DEFAULT AND DEFAULT JUDGMENT

FILED BY: SANCHEZ, ROLANDO

TENTATIVE RULING:

Defendant filed, on 5/27/26, a Motion to quash service of summons, and to set aside the default judgment.

Default was entered on 3/5/26. Default Judgment was filed on 7/30/26.

The Motion is unopposed.

Defendant filed a proof of service indicating mail service on counsel for Plaintiff.

Background

Defendant argues that he did not receive actual notice, and that the judgment should be set aside, under both Sections 473(d) and 473.5 of the CCP.

The proof of service of process, filed on 12/23/25, reflects personal service by a registered process server on 12/19/25, Oakley, CA. The document reflects that the Defendant was approximately 45, lightly complected, salt and pepper hair, and of medium height and slightly heavier weight.

The Defendant, in his Motion, claims that he was in Mexico on 12/19/25, and thus was not actually served. As proof, Defendant attached bank statements that purportedly show purchases made by him in Mexico on and around 12/19/25. Defendant also included an exhibit reflecting a plane ticket from Mexico to Oakland on 12/22/25.

The bank statement, however, does not have any information reflecting the owner of the account.

Defendant also points out that his skin complexion is dark and not light.

Analysis

A defendant can move to quash service of the summons if service of the service is not valid. *Code of Civil Procedure Section 418.10(a)(1)*. A defendant's actual knowledge of the action does not dispense with the statutory requirement of service of the summons. *Kappel v. Bartlett* (1988) 200 CA3d 1457, 1466.

When a defendant moves to quash the summons on the basis of invalid service, "[T]he burden is on the plaintiff to prove ... the fact requisite to an effective service." *Summers*